

OHIO RESIDENTIAL LEASE AGREEMENT

1. **PARTIES.** This Residential Lease (hereinafter "Lease") is made at _____, _____ County, Ohio on _____, _____ by and between the landlord _____ (hereinafter "Landlord") and the tenants _____ and _____ (hereinafter "Tenants") for lease of the premises located at _____, _____, Ohio (hereinafter "Premises"). The occupancy level of the Premises shall be in accordance with housing, health and zoning regulations and limited to the parties of this Lease or persons acquiring legal rights of occupancy hereunder.
2. **TERM.** The term of this Lease shall be _____ starting at 12:00 noon on _____, _____ and ending at 12:00 noon on _____, 20____.
3. **RENT.** Tenants shall be jointly and severally liable to pay Landlord the total sum of \$ _____ in _____ installments of \$ _____ each in advance on _____. If the due date falls on a weekend or holiday, the rent payment shall be due on the next regular business day. If Tenants attempt to make a rent payment after the due date and if Landlord decides in Landlord's sole and absolute discretion to accept a late payment, then Tenants agree to pay Landlord a total late charge of \$ _____ for each late installment, which amount shall be due and payable immediately. Furthermore, Tenants shall not use their security deposit as a rent payment.
4. **JOINT AND SEVERAL LIABILITY.** Each Tenant under this Lease is jointly and severally (individually) liable to Landlord for the total rent due for the Premises, together with any and all damages and any other miscellaneous charges. If one of the Tenants fails to pay rent, damages or other miscellaneous charges, then any one of the other Tenants or any number of other Tenants may be held liable by Landlord for such unpaid rent, damages or charges. However, Tenants making payments on behalf of a defaulting Tenant have the right to demand reimbursement from this defaulting Tenant.
5. **UTILITIES.** Tenants shall be responsible for the following utilities: _____. Tenants agree to install these particular utilities in their name by contacting the appropriate utility office. Tenants shall pay promptly all utility invoices. Landlord shall furnish all other utilities not listed above. Tenants shall conserve all utilities furnished by Landlord.
6. **SECURITY DEPOSIT.** Tenants shall deposit with Landlord the total sum of \$ _____, which is security for the faithful performance of the Lease. This security deposit shall serve as a fund from which Landlord may receive reimbursement for unreasonable wear and tear of the apartment, or for any other amounts legally due and owing, including amounts due to Landlord for damages Landlord suffered by Tenants' failure to comply with their responsibilities as set forth in paragraph 8.
- Tenants shall be entitled to a full refund of this security deposit if they pay the amounts due under this Lease and if they return the Premises in the same condition as it was in when they received possession, except for ordinary wear and tear. In order to avoid disagreements regarding the condition of the Premises, Tenants should prepare inventory checklists of the items furnished, the condition of these furnishings and the condition of the entire Premises. Tenants should prepare these checklists immediately upon obtaining possession and immediately prior to returning possession of the Premises. Tenant should furnish Landlord with a copy of such checklists.
- Landlord shall return Tenants' security deposit, together with a statement itemizing deductions if any, within thirty (30) days of :
- a) The termination of this Lease; b) Tenants' return of possession (including the keys); and c) Landlord's receipt of Tenants' forwarding address. If the security deposit is insufficient to compensate Landlord for the damages, Landlord shall give written notice to Tenants of the nature and amount of the deficiency. Tenants shall pay the amount of the deficiency to Landlord within thirty (30) days of receipt of such notice.
7. **RESPONSIBILITIES OF LANDLORD.** Landlord shall comply with all duties imposed upon Landlord by the applicable provisions of all state laws, municipal codes, regulations or ordinances governing the maintenance, construction, use or appearance of the Premises and the property of which it is a part, and in particular: a) Landlord shall keep all common areas of the Premises in a safe and sanitary condition; b) Landlord shall make timely all repairs necessary to put and keep the Premises in a fit and habitable condition and in compliance with the the local codes; c) Landlord shall maintain in good and safe working order all electrical, plumbing, sanitary, heating, ventilating and air conditioning systems, fixtures and appliances; d) Landlord shall sanitarily dispose of all rubbish; e) Landlord shall exterminate any insects, rodents or other pests on the Premises; f) Landlord shall supply running water, reasonable amounts of hot water and reasonable heat at all times; and g) Landlord shall respect Tenants' right to privacy. Except in the case of an emergency, Landlord shall give Tenants twenty-four (24) hours notice of the intent to enter the Premises, and Landlord shall enter only during reasonable hours. Landlord agrees to enter only after knocking, to leave the Premises in as good condition as when entered, to clean and remove dirt or debris that result from the performance of maintenance and repairs, and to lock the rental unit when leaving, unless otherwise requested by Tenants.
8. **RESPONSIBILITIES OF TENANTS.** Tenants shall comply with all duties imposed upon them by the applicable provisions of all state laws, municipal codes, regulations and ordinances, and in particular: a) Tenants shall keep safe and sanitary that part of the Premises which Tenants occupy and use; b) Tenants shall dispose of all rubbish, garbage and other waste in a clean, safe and sanitary manner; c) Tenants shall keep in a clean condition all plumbing fixtures in the Premises; d) Tenants shall use and operate all electrical and plumbing fixtures properly; e) Tenants shall not place any foreign objects in toilets or drains; f) Tenants shall personally refrain, and forbid any other

(over)

person who is on the Premises with Tenants' permission, from intentionally or negligently destroying, defacing, damaging or removing any fixture, appliance or other part of the Premises; g) Tenants shall use and operate properly any range, refrigerator, washer, dryer, dishwasher or other appliances supplied by Landlord; h) Tenants shall conduct themselves, and require other persons on the Premises with Tenants' consent to conduct themselves, in a manner that will not disturb the neighbors' peaceful enjoyment of the community; i) Tenants shall inform Landlord of any conditions, whether caused by Tenants or due to normal use of the Premises, which should be corrected in order to preserve the condition of the Premises; and j) Tenants shall give consent for Landlord to enter the Premises at reasonable times and upon reasonable notice in order to inspect, make ordinary, necessary or agreed repairs, decorations, alterations, improvements, supply necessary or agreed services or exhibit the Premises to prospective or actual purchasers, mortgages, tenants, workers or contractors. In the event of an emergency, Tenants shall permit Landlord to enter the premises immediately without the usual notice.

9. **LIABILITY.** Landlord shall not be liable to Tenants, nor to their guests, for damage or loss to person or property caused by other persons, including theft, burglary, assault, vandalism or other acts or crimes. Unless Landlord or the agents of Landlord are negligent, Landlord shall not be liable to Tenants, nor their guests, for personal injury or property damage (furniture, jewelry, clothing, etc.) caused by sewer backup, interruption of utilities or other occurrences. Tenants are strongly urged to acquire renter's insurance to protect against loss from property damage or personal liability.
10. **SUBLEASING.** Tenants shall not sublease the Premises without Landlord's written consent; but this consent shall not be withheld unreasonably. Upon receipt of this written consent, Tenants shall pay Landlord a total sum of \$_____ as a subleasing fee.
11. **LAWFUL USE.** Tenants shall use the Premises in a lawful manner; thus, Tenants shall not permit violations of any laws, including those pertaining to alcohol or drugs. Tenants shall not permit anyone younger than 21 years of age to possess or consume alcohol on the Premises. Tenants shall not serve alcohol on the Premises to anyone younger than 21 years of age. Tenants shall use the Premises as a residential dwelling; thus, Tenants shall not disturb nor annoy other residents of the neighborhood. Tenants shall not cause nor maintain any dangerous, noxious or offensive activity which might constitute a nuisance to others.
12. **PETS.** Tenants shall not have a pet upon the Premises, unless permission is granted through an attached pet addendum.
13. **LEAD PAINT DISCLOSURE.** The parties acknowledge that a Lead-Based Paint/Lead-Based Paint Hazards Disclosure Form is attached hereto or has been duly given by Landlord and accepted by Tenant or is unnecessary, as set forth by federal law.
14. **ADDENDUMS.** The following addendums are attached hereto and incorporated herein by reference:

_____ Parental Guarantee	_____ Pet
_____ Rules and Regulations	_____ Other: _____

The parties, by signing below, hereby represent that they have fully read and fully understood the foregoing Lease Agreement and its addendums, and they acknowledge receipt of a signed copy of this Lease Agreement and its addendums.

_____	_____	_____	_____	_____
Landlord	Tenant	Tenant	Tenant	Tenant

Please print names and forwarding addresses of the above-mentioned parties:

_____	_____	_____	_____	_____
_____	_____	_____	_____	_____
_____	_____	_____	_____	_____